

adopted in *Ex parte Young* applies to permit plaintiffs to seek a federal court order preventing the defendant executive officials from enforcing a state law that is contrary to federal law. Under prevailing Supreme Court authority, the answer to that difficult question turns on whether each official has “some connection with the enforcement” of the Act and has threatened or is about to commence enforcement proceedings. 209 U.S. 123, 156-57 (1908). See *Whole Woman’s Health v. Jackson*, 142 S. Ct. 522, 535-36, 544 (Roberts, C.J., concurring in the judgment and dissenting in part), 545 (Sotomayor, J., concurring in the judgment in part and dissenting in part). This is a complex, fact-intensive inquiry. In *Jones v. Jegley*, 947 F.3d 1100, 1103 n.2 (8th Cir. 2020), we concluded “a ‘strong enough’ connection” to enforcement was shown. In *Minnesota RFL Repub. Farmer Labor Caucus v. Freeman*, 33 F.4th 985, 992 (8th Cir. 2022), we concluded the defendants’ showing that they had not enforced or threatened to enforce the statute at issue and affidavits stating they have no present intention to commence enforcement proceedings were sufficient to entitle them to immunity.

The district court ruled from the bench at the end of a lengthy hearing on defendants’ motion to dismiss. The transcript of that hearing, RDoc 62, was filed September 20, 2024. After correctly stating the above-summarized standard for applying the *Ex parte Young* exception -- that each defendant has an adequate connection to enforcing or threatening to enforce the Act -- the court rejected the broad conflicting contentions of plaintiffs and the three defendants, denied plaintiffs’ request that the court *sua sponte* grant summary judgment in their favor, and emphasized that further developments as the case progresses, including discovery, could change the landscape and cause the applicability of the *Ex parte Young* exception to be re-appraised. On the record before it, the court then concluded:

-- the Governor’s authority to appoint and remove the Commissioner, and his speeches saying if you violate the law you will go to jail, “evinced a commitment to enforcing the law and a threat of enforcing the law that is unique among all the cases I could find,” a “robust tie to threatening to enforce the law;”